



WAGE AND HOUR DIVISION
UNITED STATES DEPARTMENT OF LABOR

Fact Sheet #12: Agricultural Employment Under the Fair Labor Standards Act (FLSA)

January 2025

This fact sheet provides general information concerning the application of the Fair Labor Standards Act ("FLSA" or "Act") to agricultural employment. The FLSA is the federal law which sets minimum wage, overtime, recordkeeping, and child labor standards.

Coverage

Virtually all employees engaged in agriculture as it is defined under the FLSA are covered by the Act in that they produce goods for interstate commerce.

The definition of agriculture under the FLSA has two distinct branches: primary agriculture and secondary agriculture.

1. Primary agriculture includes farming in all its branches (e.g., the cultivation and tillage of the soil; dairying; the production, cultivation, growing, and harvesting of any agricultural or horticultural commodities; and the raising of livestock, bees, fur-bearing animals, or poultry).
2. Secondary agriculture includes all practices, including forestry or lumbering operations, performed by a farmer or on a farm, and as an incident to or in conjunction with such farming operations. For example, a farm's activities of cutting or freezing its own (i.e., those produced or raised by the farmer or on its farm) fruits, vegetables, and meat, without adding any ingredients, may be secondary agriculture.

Employment that is not within the scope of either primary or secondary agriculture is not employment in agriculture under the FLSA.

Exemptions from Minimum Wage and Overtime

There are certain exemptions under the FLSA that do not require specific employees engaged in agriculture to be paid minimum wage, overtime pay, or both. An employee's exempt status is contingent upon the duties that the employee performs each workweek (i.e., a fixed, recurring, seven consecutive day period). Thus, whether an employee is exempt from the minimum wage and overtime protections of the FLSA is assessed on a workweek basis, and each workweek is assessed independently of other workweeks.

Employees who are employed in agriculture as that term is defined in the Act are exempt from the overtime pay provisions. They do not have to be paid time and one-half their regular rates of pay for hours worked over forty per week under the FLSA.

Any employer in agriculture who did not utilize more than 500 "man days" of agricultural labor in any calendar quarter of the preceding calendar year does not have to pay minimum wage and overtime pay to any employee employed in agriculture for the subsequent calendar year under the FLSA. A "man day" is defined as any day during which an employee performs agricultural work for at least one hour.

Additional exemptions from the minimum wage and overtime provisions of the Act for agricultural employees apply to the following:

- Agricultural employees who are immediate family members of their employer.

- Those principally engaged on the range in the production of livestock.
- Local hand harvest laborers who commute daily from their permanent residence, are paid on a piece rate basis in traditionally piece-rated occupations and were engaged in agriculture less than thirteen weeks during the preceding calendar year.
- Minors, 16 years of age or under, who are hand harvesters, paid on a piece rate basis in traditionally piece-rated occupations, employed on the same farm as their parent or person standing in the place of their parent, and paid the same piece rate as those over 16 years of age.

Requirements

Although exempt from the overtime requirements of the FLSA, agricultural employees must be paid at least the federal minimum wage (unless exempt from minimum wage as noted above). There are numerous restrictions on the employment of minors less than 16 years of age, particularly in occupations declared hazardous by the Secretary of Labor. Substantial civil money penalties are prescribed for violations of the monetary and child labor provisions of the law. The FLSA also requires that specified records be kept.

Typical Problems

- Not keeping/maintaining records of the names and permanent addresses of temporary agricultural employees, dates of birth of minors under age 19 years old, or hours worked by employees being paid on a piece rate basis.
- Failing to pay overtime to employees whose jobs are related to agriculture but do not meet the definition of agriculture contained in the Act. For example, someone working in a packing shed on a farm who also packs and/or stores commodities that have been produced on a different farm are not considered to be engaged in agriculture.
- Agricultural employers who utilize the services of a farm labor contractor are almost always in a situation of joint employment with the contractor in regard to the employees. Joint employment means that both the farm labor contractor and the farmer are responsible for complying with the minimum wage, overtime, recordkeeping, and youth employment provisions of the law. If either party fails to comply with the law both parties may be held liable.
- Finally, most agricultural employers, agricultural associations, and farm labor contractors are subject to another statute, also administered by the Wage and Hour Division -- the Migrant and Seasonal Agricultural Worker Protection Act. Employers in agriculture or agriculture-related businesses should ascertain how this law applies to their operations.

Where to Obtain Additional Information

For additional information, visit our Wage and Hour Division Website: <http://www.dol.gov/agencies/whd> and/or call our toll-free information and helpline, available 8 a.m. to 5 p.m. in your time zone, 1-866-4USWAGE (1-866-487-9243).

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